ORDINANCE OF THE TOWN OF NORTH PROVIDENCE AMENDING THE EXISTING ZONING ORDINANCE AND ZONING MAP

WHEREAS, the Town Council of the Town of North Providence desires to amend, by Ordinance, its existing Zoning Ordinance and Zoning Map with regards to the Zoning of Tax Assessor's Lot 617 on Assessor's Plat 19, with said properly commonly referred to as 1342 Douglas Avenue; and

WHEREAS, an application has been filed by 266 Putnam Avenue, LLC requesting the amendment the North Providence Zoning Ordinance and Zoning Map.

NOW, THEREFORE, BE IT HEREBY ORDAINED BY THE TOWN COUNCIL OF THE TOWN OF NORTH PROVIDENCE AS FOLLOWS:

SECTION ONE: That the existing Zoning Ordinance and Zoning Map of the Town of North Providence be amended so that the Zoning of Lot 617 on Assessor's Plat 19, as it appears on record as of this date in the Office of the Assessor of Taxes of said Town of North Providence, be changed from its current designated classification of Residential ("RL 13") to Commercial General("CG"), to reflect the existing and historic use and character of the property.

SECTION TWO: That the Amendment set forth in Section One herein shall be subject to the following restrictions:

1. That the amendment is approved based upon the plans submitted at the hearing, which are incorporated herein by reference, and the Town of North Providence hereby approves the plans as submitted;

2. That the development complies with all other zoning and Town regulations and State Laws/Regulations;

SECTION THREE: That the Amendment provided for herein conforms to the Comprehensive Plan of the Town of North Providence, as amended simultaneously herewith, as approved by the Town of North Providence and provided to the State of Rhode Island for approval.

SECTION SEVEN: The provisions of this Ordinance are severable and, in the event that any provision of this Ordinance is determined to be invalid, for any reason, the remaining provisions shall remain in full force and effect.

SECTION EIGHT: This Ordinance shall take effect upon adoption and any Ordinance inconsistent herewith is hereby repealed.

APPROVED AS TO FORM AND LEGALITY:

TOWN SOLICITOR

ADOPTED: March 5, 2024

COUNCIL PRESIDENT

APPROVED: March 12, 2024

MAYOR

TOWN CLERK

DECISION

TOWN OF NORTH PROVIDENCE TOWN COUNCIL

In Re: Application of 266 Putnam Avenue, LLC

DECISION

The above matter came before the North Providence Town Council, on February 6, 2024, with regard to an application filed by the above-referenced party to amend the existing North Providence Zoning Map and Zoning Ordinance. The representative of the applicants was present and was represented by legal counsel and after a public hearing before the North Providence Town Council, the Town Council, upon a roll call vote of six (6) ayes and zero nays, makes the following decision:

1. That the existing Zoning Ordinance and Zoning Map of the Town of North Providence be amended so that the Zoning of Lot 617 on Assessor's Plat 19 said premises commonly referred to as 1342 Douglas Avenue, as it appears on record as of this date in the Office of the Assessor of Taxes of said Town of North Providence, be changed from be changed from Residential ("RL/13") to Commercial General ("CG"), subject to the restrictions set forth in Section 2 herein.

2. That the amendment set forth in Section 1 herein shall be subject to the following restrictions:

A. That the amendment is approved based upon the plans submitted at the hearing, which are incorporated herein by reference, and the Town of North Providence hereby approves the plans as submitted;

B. That the development complies with all other zoning and Town regulations and State Laws/Regulations;

3. That the plans submitted and the Amendment provided for herein conforms to the Comprehensive Plan of the Town of North Providence, as amended simultaneously herewith, as approved by the Town of North Providence and provided to the State of Rhode Island for approval.

4. That any approval by the Town of North Providence Town Council is subject to the further approval by the State of Rhode Island, Statewide Planning Department.

Entered as a Decision of the North Providence Town Council, the local authority, on this 6th day of February, 2024.

APPROVED AS TO FORM AND LEGALITY:

ADOPTED: March 5, 2024

Council President

APPROVED: March 12, 2024

Mayor

Town Clerk